

## 26SMCV02165 26SMCV02165

County: los-angeles

Division: Civil Law and Motion

Department: N

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Case Number: 26SMCV02165 Hearing Date: August 18, 2026 Dept: N

### TENTATIVE ORDER

Defendants ACSB, LLC; Jacaranda Healthcare Group, LLC; and Aspen Skilled Healthcare, Inc.'s Motion to Compel Arbitration and Stay Proceedings is GRANTED. The proceedings are hereby stayed pending the conclusion of arbitration.

Defendants ACSB, LLC; Jacaranda Healthcare Group, LLC; and Aspen Skilled Healthcare, Inc. to give notice.

On January 5, 2026, Plaintiff entered into an agreement with Defendants which provides, in part, as follows:

[B]y signing this contract you are agreeing to have any issue of medical malpractice decided by neutral arbitration and you are giving up your right to a jury or court trial. . . .

[B]y signing this contract you are agreeing to have all claims, including claims other than a claim for medical malpractice, decided by arbitration and you are giving up your right to a jury trial or court trial and you agree that no party shall adjudicate any claim on a class action basis.

Mot., Rosales Decl. ¶ 4, Ex. A, capitalization omitted.) The agreement also provides that residents are not required to sign the Arbitration Agreement as a condition of admission to the facility or to continue receiving care at the facility, and it states that it encompasses Defendant ACSB, LLC's owners, investors, operators, officers, directors, administrators, staff, employees, agents, any management and administrative services company and all related entities and individuals. (Ibid.) Plaintiff does not dispute that she signed this agreement. However, she argues that she did not have a power of attorney for Decedent John Harp, Jr. and could not bind him to an arbitration agreement and lacked agency to so bind him. She further argues that the agreement is unconscionable, and her wrongful death claim cannot be compelled to arbitration.

Notably, Plaintiff represented in the agreement that she was Decedent's legal representative and agent, but she now seeks to disavow this statement. This argument is not well taken, as Defendants provide evidence that they explained that entry into the agreement was not mandatory (Mot., Rosales Decl. ¶ 11), and Plaintiff voluntarily signed this agreement while representing that she had the authority to act as Decedent's agent. It would be unjust to allow Plaintiff to so represent then seek to avoid enforcement of this agreement where she chose to enter into the agreement and made no argument that Decedent himself should do so or had the capacity to do so.

As to unconscionability, Plaintiff argues that the agreement is unenforceable because it is both procedurally and substantively unconscionable. As to unconscionability, it is axiomatic that "a party opposing the petition [to compel arbitration] bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [] In these summary

proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (Giuliano v. Inland Empire Personnel, Inc., supra, 149 Cal.App.4th at p. 1284.) "Courts analyze the unconscionability standard in Civil Code section 1670.5 as invoking elements of procedural and substantive unconscionability." (McManus v. CIBC World Markets Corp. (2003) 109 Cal.App.4th 76, 87 (McManus).) "The procedural element of unconscionability focuses on whether the contract is one of adhesion" and "whether there is oppression arising from an inequality of bargaining power or surprise arising from buried terms in a complex printed form." (Ibid., quotation marks omitted.) "The substantive element addresses the existence of overly harsh or one-sided terms." (Ibid.) "An agreement to arbitrate is unenforceable only if both the procedural and substantive elements are satisfied." (Ibid.)

"Procedural unconscionability pertains to the making of the agreement; it focuses on the oppression that arises from unequal bargaining power and the surprise to the weaker party that results from hidden terms or the lack of informed choice." (Ajamian v. CantorCO2e, L.P. (2012) 203 Cal.App.4th 771, 795.) An arbitration provision is substantively unconscionable where the provision "does not fall within the reasonable expectations of the weaker or 'adhering' party," is "unduly oppressive," or has "overly harsh or one-sided" terms. (Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 113-114; McManus, supra, 109 Cal.App.4th at p. 87.)

As to procedural unconscionability, presentation of an arbitration agreement on a "take it or leave it" basis, even in an employment context or where time is of the essence to sign, does not automatically render the agreement procedurally unconscionable; Plaintiff must also show that there was no opportunity for meaningful negotiation or that she was subjected to oppressive tactics that forced them to sign the agreement. (See Lagatree v. Luce, Forward, Hamilton & Scripps (1999) 74 Cal.App.4th 1105, 1127 ["a compulsory predispute arbitration agreement is not rendered unenforceable just because it is required as a condition of employment or offered on a 'take it or leave it' basis"].) Plaintiff makes no argument that she was not given the agreement to review and study before signing, and there is no evidence that anyone exerted pressure on her. Further, the arbitration agreement is short, in a normal sized typeface, making clear that the agreement was one to arbitrate claims. As to substantive unconscionability, the Court cannot conclude that the agreement is unconscionable where it was voluntary and not a condition to treatment, and the Court cannot conclude that it is unconscionable simply because Plaintiff may be required to pay certain fees.

Finally, insofar as Plaintiff argues that her wrongful death claims are not subject to arbitration, the agreement expressly provides that actions relating to death from negligence are subject to arbitration (Mot., Rosales Decl. ¶ 4, Ex. A), Ruiz v. Podolsky (2010) 50 Cal.4th 838, 849 indicates that wrongful death claims may be arbitrated, and there is no basis to conclude that Plaintiff's claim should not be arbitrated simply because she has included claims of elder abuse. For these reasons, Defendants ACSB, LLC; Jacaranda Healthcare Group, LLC; and Aspen Skilled Healthcare, Inc.'s Motion to Compel Arbitration and Stay Proceedings is GRANTED. The proceedings are hereby stayed pending the conclusion of arbitration.